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File No.: EXP202213557

RESOLUTION ON THE ARCHIVING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On December 21, 2022, a complaint was filed with the Spanish Agency for Data Protection.

The reasons for the complaint are as follows:

The complainant states that they are a victim of sextortion. The extortionist uses different accounts on IG: ***ACCOUNT.1, the most recent: ***ACCOUNT.2.

It is stated that the video is published via the link: ***URL.1.

SECOND: On December 23, 2022, in accordance with Article 65 of the LOPDGDD, the complaint was accepted for processing.

THIRD: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

On December 22, 2022, it was verified that:

1. At the URL ***URL.1, there is a video of a boy with sexual content in which his full face appears.
2. That in the privacy policy of ***URL.2 it states that the responsible party for the website ***URL.3 is INTERNATIONAL MEDIA LTD.

On December 22, 2022, a request for the removal of said video was made to the platform via email.

On December 29, 2022, it was verified that the video at URL ***URL.1 is no longer accessible.

On January 27, 2023, the file was forwarded to the Public Prosecutor's Office.

On April 17, 2023, it was verified that:

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1. The domain registrar for ***URL.3 is EURODNS S.A. and its URL is ***URL.4.

As a result of the information request made by the Inspection, on June 27, 2023, EURODNS sent the following information and statements to this Agency via email, among others:

1. Identification and contact details of the person responsible for registering the domain youjizz.com, located in ***COUNTRY.1, and whose name is A.A.A.

On June 29, 2023, an information request was sent to A.A.A. and INTERNATIONAL MEDIA LTD via international postal mail. The delivery was returned by the postal service as not claimed for the first recipient, and due to incorrect address for the second recipient.

On September 1, 2023, the postal address of INTERNATIONAL MEDIA LTD was verified online.

On September 1, 2023, the following was verified regarding the Instagram profiles:

1. ***ACCOUNT.3 exists and is a private account, so its posts cannot be viewed.
2. ***ACCOUNT.4 exists and has no posts.
3. ***ACCOUNT.5 exists and is a private account with no posts.
4. ***ACCOUNT.6 exists and has no posts.
5. ***ACCOUNT.7 does not exist when searched.
6. ***ACCOUNT.2 does not exist when searched.

LEGAL GROUNDS

I

Competence

In accordance with the functions that Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General

Data Protection Regulation, hereinafter GDPR) assigns to each control authority and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not...

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They contradict, in a subsidiary manner, the general rules on administrative procedures."

II

Conditions for Consent

In relation to the conditions for consent, Article 7 of the GDPR states:

- "1. When the processing is based on the consent of the data subject, the controller shall be able to demonstrate that the data subject has consented to the processing of their personal data.
2. If the consent of the data subject is given in the context of a written declaration that also relates to other matters, the request for consent shall be presented in such a way that it is clearly distinguishable from other matters, in an intelligible and easily accessible form, and using clear and plain language. No part of the declaration that constitutes a breach of this Regulation shall be binding.
3. The data subject shall have the right to withdraw their consent at any time. The withdrawal of consent shall not affect the lawfulness of processing based on consent before its withdrawal. Before giving consent, the data subject shall be informed thereof. It shall be as easy to withdraw consent as to give it.
4. When assessing whether consent has been freely given, account shall be taken, to the greatest extent possible, of whether, among other things, the performance of a contract, including the provision of a service, is conditional on consent to the processing of personal data that is not necessary for the performance of that contract."

III

Legitimacy for Processing

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection is therefore subject to this Regulation.

Article 4.2 of the GDPR defines "processing" as: "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure or destruction."

Including images that identify or make identifiable a person, as well as their name, in published videos constitutes processing of personal data and, therefore, the person doing so must rely on one of the legitimizing grounds set out in Article 6 of the GDPR. In these cases, as in the case subject to complaint, the usual legitimizing ground is generally consent. And it is the person who uploads the personal data and images that can be viewed without any limitation who must demonstrate that they have that consent.

For such processing to be carried out lawfully, it must comply with the provisions of Article 6.1 of the GDPR, which states:

"1. Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;

- d) processing is necessary in order to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in paragraph f) shall not apply to processing carried out by public authorities in the performance of their tasks.”

IV

Conclusion

To identify the person or persons who were publishing the images, preliminary investigative actions were carried out, as established by Article 67 of the LOPDGDD, which states the following:

“1. Before adopting the decision to initiate proceedings, and once the complaint has been admitted for processing, if any, the Spanish Data Protection Agency may carry out preliminary investigative actions in order to achieve a better determination of the facts and circumstances justifying the processing of the procedure.

The Spanish Data Protection Agency shall act in any case when it is necessary to investigate processing involving mass traffic of personal data.

2. The preliminary investigative actions shall be subject to the provisions of Section 2 of Chapter I of Title VII of this organic law and shall not exceed a duration of twelve months from the date of the admission decision or the date of the decision to initiate it when the Spanish Data Protection Agency acts on its own initiative or as a result of

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the communication that would have been sent to you by the supervisory authority of another Member State of the European Union, in accordance with Article 64.3 of this organic law.”

After conducting the investigations outlined in the Facts, the following conclusion has been reached: At the time the complaint was filed, the video in question was published at the claimed address. On December 29, 2022, the removal of the reported content was confirmed.

The presumed responsible party for the platform XXXXXXXX has been identified, and is located in ***COUNTRY.1. A request for information has been sent to them, but they have not collected the delivery. The request has also been sent to the person responsible for the platform listed in the privacy policy, to the postal address obtained through an internet search, but the delivery was returned due to an incorrect address. Therefore, it has not been possible to obtain information regarding the possible responsible party for the publication of the video.

Thus, as it has not been possible to attribute responsibility for the processing in the publication of the images, in accordance with what has been indicated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO PROCEED TO THE FILING of the present proceedings.

SECOND: TO NOTIFY this resolution to the complaining party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative

Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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